

tenders are decided whichever is earlier, he will not be free to withdraw the tender. Any such withdrawal will entail forfeiture of the earnest money deposited for the work. Due to departmental or administrative reasons if it is found necessary to keep the tender open for a further period, prior consent of the bidder shall be obtained in writing for every further period of one month.

13. Before commencing work or within a week after the date when the acceptance of the tender has been intimated to him, the bidder shall deposit a sum sufficient to make up the balance amount which together with the amount of earnest money deposited shall be treated as security for the proper fulfilment of the same and shall execute an agreement for the work in the P.W. Schedule Form. If he fails to do this or in the case of P.W. contracts maintain a specified rate of progress (to be specified in each case in the tender schedule) the earnest money and security deposit shall be forfeited to Government and fresh tenders shall be called for or the matter otherwise disposed of. If as a result of such measures due to the default, of the bidder to pay the requisite deposit, sign contracts or take possession of the work any loss to Government results, the same will be recovered from him as arrears of revenue, but should it be a saving to Government, the original bidder shall have no claim whatever to the difference. Recoveries on this or any other account will be made from the sum that may be due to the bidder on this or any other subsisting contracts or under the Revenue Recovery Act, otherwise the Government may decide.
14. Acceptance of the tender rests with the Tender Inviting Authority who does not undertake to accept the lowest or any particular tender.
15. The right to carry out the work in conformity with or in a manner entirely different from the terms of this invitation that may be considered most suitable before or subsequent to the receipt of tenders due to exigencies of work, is reserved with the department.
16. Schedule of quantities, specifications of work to be done and conditions of contract to be entered into can be seen on the e-GP website. It shall be definitely understood that the Government does not accept any responsibility for the correctness or completeness of the schedule, that the schedule is liable to alteration by omissions, deductions or additions at the discretion of the competent departmental officer or as set forth in the conditions of contract. The bidder will however base this tender amount in the case of lump sum tender on the basis of those quantities, etc.
17. Tender forms and general specifications can be downloaded free of cost from the e- GP website. Tenders not submitted in such prescribed online format or submitted incomplete in any respect whatever such as unattested errors and corrections in rates, quantities, units or amounts (figures not expressed in words), totals of contract not entered, etc, shall be summarily rejected.
18. The earnest money deposit of the unsuccessful bidders will be refunded immediately after tabulating tenders, keeping only the earnest money of the first 2 lowest tenders via electronic media. The Earnest Money Deposit of the remaining unsuccessful bidders will also be refunded within a week from the date of acceptance of the tender via electronic media.
19. Solicitor's fee, if any, to be paid to the Law Officers of Government for scrutinising or drawing up of agreements- will be paid and the same recovered from the successful bidder.
20. In case of any additional remarks the bidders must attach/upload a PDF file along with online bid. If they are prepared to carry out at their tendered rates such portion or portions of the work as may finally be allotted to them by the Officer deciding tenders.

Note: -The Department reserves the right to allot such portion of the work included in the tender at the rates quoted by the bidder in the absence of specific noting by the bidder to the contrary against clause 4 on page 5 of tender (G W. D-Form 84). Such allotment shall not vitiate the acceptance and the bidder shall indemnify Government against any loss to Government, due to failure on the part of the bidder to carry out such portion of the work allotted to him at the rates quoted by him. The successful bidder will have to carry out 25 percent more of the estimated quantity of every item at his agreed rates. The Contract is bound to carry out sinking of wells increase up to 10 meter (ten meter) extra depth beyond the estimated design depth and rate for which shall be paid as per schedule of rate and extra item conditions. In case of pile foundation, precast or cast in site, in the same conditions as above shall apply.

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21. Any further information necessary can be obtained at the office of the tender inviting authority on all working days during office hours.
22. The work should be completed in all respects Days either from the date of handing over the site or from 10th day of agreement whichever is earlier. Executing agreement for the works will be made within the time limit prescribed as follows:
 - a. The time limit allowed for executing the agreement without fine will be 14 days (Fourteen days) from the date of acceptance of tender. Acceptance of tender rests with Technical Sanction authority.
 - b. Further time of 10 days will be allowed to execute an agreement by realizing fine of 1% of the P.A.C subject to a minimum of Rs.1000 (Thousand Only) and maximum of Rs.25,000 (Twenty-Five Thousand Only).
 - c. Tenders will be rejected, if agreement is not executed within 24 days and work will be awarded to the next lowest bidder, as per rules.
 - d. The bidder will take over the charge of the site within 10 days after executing agreement and commence the work.
23. Payment on lump sum basis or by final measurement at unit prices:
 - a. Final measurements need not be taken unless either the bidder or the Executive Engineer claims extras to or deductions from the quantities of Schedule A.
 - b. In case final measurements are claimed, they shall be taken only for those items for which either the bidder or the Executive Engineer claims final measurements and the quantities of the remaining items in Schedule A shall be accepted as correct. The lump sum amount mentioned in the agreement will then be varied by addition there to or deducting there from as the case may be the difference (if any), between the amounts mentioned in Schedule A for such items and the amounts arrived at by calculation at Contract rates based on the revised quantities for the same obtained by the final measurement aforesaid.
Amendment: When payment on earth work exceeding 300 M3 are made based on the tape measurements, the bidder shall give a declaration in writing to the effect that he agrees for the recovery of the over payment, if any, from the next bill.
 - c. It shall be accepted as a condition of the contract that the payment of the final bill to the bidder less the withheld amount and his acceptance thereof shall constitute a full and absolute release of Government from all further claims by the bidder under the contract.
 - d. Payment for additions and deductions for omissions. No authorised variation shall vitiate the contract but additions and omissions shall be measured and dealt with in accordance with clause 23 (b).
 - e. Items of work not expressly or impliedly described in the schedule, plans or specifications will be treated as 'extras'. They will include only items of works which through highly necessary for the proper execution of the work and for its completion, were not provided for in the original contract.
 - f. The execution of an extra item of work and payment-therefore will be based on the following conditions: -
 - i. There shall be an order in writing to execute the extra item of work duly signed by an Engineer not below the rank of an Assistant Engineer before its commencement.
 - ii. If the bidder finds, after examining the specifications and plans that extra are involved, he should give notice to the Engineer to this effect and shall proceed with the execution of the extra item only after receiving instructions in writing from Engineer.
 - g. Extra items may be classified as additional substituted or altered items, depending, on their relation or otherwise to the original item or items of work.
 - h. The rates extra shall be worked out as below:
 - i. In the case of all extra items whether additional altered or substituted, if accepted rates for identical items provided for in the contract such rates shall be applicable.

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- ii. In the case of extra items whether altered or substituted, for which similar items exists in the contract, the rates shall be derived from the original item by appropriate adjustment of cost of affected components. The percentage excess or deduction of the contract rate the original item with reference to the departmental estimated rate shall be applied in deriving the rates for such items.
- iii. In the case of extra items. Whether altered or substituted and for which similar items do not exist in the contract and rates exists in the schedule of rates, the rates shall be arrived at on the basis of the departmental data rate as per agreed Schedule of Rates. Tender excess, if any, will not be applied.
- iv. In the case additional items, the rates shall be arrived at on the basis of the departmental data rates as per the agreed SOR, after applying the tender deduction except, on the cost of departmental material. Tender excess, if any, will not be applied.
- v. In the case of extra items whether additional altered or substituted, for which the rates cannot be derived from similar items in the contract, and only partly from the departmental schedule of rates the rates for such part or parts of items as are not covered in the schedule of rates shall be determined by the Engineer on the basis of the prevailing market rates giving due consideration to the analysis of the rate furnished by the bidder with supporting documents, including bidder's profit. This shall be added on to the departmental rate (including bidder's profit) current at the time of ordering or executing the extra item, whichever is earlier for the other part the item for which rates can be derived from the schedule of rates.
- vi. In the case of extra item whether additional, altered or substituted, for with the rates cannot be derived either from- similar item of work in the contract or from the departmental schedule of rates, the bidder shall within 14 days of the receipt of the order to carry out the said extra item of work. Communicate to the Engineer the rate which he proposes to claim for the item, supported by analysis of the rate claimed and the department shall within one month thereafter determine the rate on the basis of the market rate giving consideration to the rate claimed by the bidder.
- vii. In the case of percentage rate contract, the rate for extra item shall be arrived at by applying the percentage excess or deduction to the departmental data rate as per the original schedule on which the tenders were invited.
- i. Wherever the term "Departmental data rate" appears, it shall mean the rate derived from the Departmental schedule of rate and shall include conveyance charges and bidder's profit.
- j. In cases in which the bidder has extra items not contemplated in the agreement but the rates of which require sanction of higher authorities the Division Officer may in such case, sanction advance up to an amount not exceeding 75 per cent of the amount for the items at the rate worked out and certified by the Sub Division Officer and the Junior Engineer shall in all such cases promptly record all authorised extra items executed by the bidder including detailed measurements and quantities thereof in the Measurement Book. He shall neither enter any rate for the same in the Measurement Book nor include such extra items in the body of the bill. When the bill is received in the Sub Division, the sub Division Officer shall prepare a separate statement for those extra items showing the items executed, quantity of each items rate for each item worked out by him based on agreement, conditions and amount for each item in the basis of the rate worked out by him, He shall also furnish a certificate to the effect that he has personally examined all the extra items and they are bonafide the amount payable for these items will not be less than Rs..... (Amount to be specified) and that there is no objection in paying 75 per cent of this amount as a secured advance on receipt of the bill with the above statement and certificate the Division Officer may make payment

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not exceeding the amount recommended by the sub-Division Officer as a lump sum secured for works done but not billed for.

24. Arbitration shall not be a means of settlement of any dispute or claim out of this contract. All disputes and differences arising out of the contract may be executed in pursuance of the modification shall be settled only by the Civil Court in whose jurisdiction the work covered by the contract is situated, or in whose jurisdiction the contract was entered into in case the work extended to the jurisdiction of more than one court.
25. The bidder shall not without the previous sanction in writing of the authority accepting the tender execute any power of attorney in respect of any matter, touching this contract, and any such power of attorney executed without such sanction shall not be recognised by or be binding upon Government or their officers. It shall be entirely within the discretion of the authority accepting the tender either to grant such sanction or to refuse it or to revoke a sanction once given.
26. No part of the contract shall be sublet without written permission of the Executive Engineer nor shall transfer be made by power of attorney authorise other to receive payment on the bidder's behalf.
27. The tender inviting authority or other sanctioning authority reserves the right to reject any tender or all the tenders without asking any reason there for.
28. They will also establish laboratory facilities for testing the quality of the materials at their cost. The quality of materials used by the bidders should be ensured by the departmental officers and testing of the materials wherever necessary will be done by the bidder at his cost.
29. The materials available in Departmental stores if issued to the bidder will be recovered at book value on issue rate plus 20 per cent supervision charge or market value or data rate whichever is higher. The fixing of market rate will be governed as per clause 33.
30. In making payment the total amount of the bill will be rounded off correct to the nearest rupee if the amount is above Rs. 25 and to the nearest paisa if amount is below Rs 25. Value of quantities of the departmental materials issued for the work either allowed to deteriorate or unaccounted for amounting as it does to an excess supply over the sanction requirements shall be recovered at book value or issue rate plus 20 per cent supervision charges or market rates whichever is higher with sales tax and in addition specific penalty rate stipulated by the Department Market value will be the retail selling price of materials in the locality of the work or the nearest market town current on the day of issue, or recovery which is more. The Executive Engineer shall obtain the information and record within 7 days of such issue, sending a copy to the bidder. The decision of the Chief Engineer regarding current market rates shall be binding on the bidder. Unused balance if any at the time of completion or termination of the contract will not be accepted by the department- The cost of such materials amounting as it does an excess over sanctioned requirements shall be recovered at book value +20 per cent or current market rate whichever is higher and in addition to specific penalty rates as may be fixed by Director in the form of Departmental Circular order from time to time shall also be recovered.
31. Cost of small excess quantity of cement may less than one full day will be recovered from the bidders without penalty and that if the excess is more than it will be transferred to other works as early as possible sub top condition that the quantity of cement is ensured by a responsible officer not below the rank of Assistant Engineer, before utilizing it in one of the works for which it is transferred.
 - a. In the case of excess steel rods, recovery of cost will be affected on agreement rates, if the excess is not due to any change in design or abandoning a part of the work.
 - b. The materials will be issued to the bidder only for meeting the actual requirement so that large excess do not occur at the time of completion of work.
32. Bidders should declare that they are not related to any Government servant, who is in charge of or having control of the work. Relationship in this will be restricted to father, mother, son, daughter brother-in-law mother-in law/ and first cousin of the officer concerned. If the above condition is found to have been contravened, when they tender the earnest money/ security deposit of the bidder / tender will be forfeited and the contract entered into will stand cancelled.

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33. The bidder will provide his own tool and plant, store sheds to store his own materials as well as those supplied by the department and will be entirely responsible for the proper use and safe custody of the latter and also for any loss damage, theft, mishandling or any cause, whatsoever. The responsibility for safe custody of materials at work site and during transit will be vested with the bidder. The concerned Overseer in charge of the work will verify the stock and initiate action of shortage in stock in notice. Other inspecting officers will also verify the stock during inspection.
34. In case of schedule rate contract, if different rates are quoted for the same specification of work under identical working condition at the same site / in different appendices of the lowest quoted rates will be accepted for the items in all the appendices.
35. The bidder shall be responsible for the safety of the labour employed by him and he shall be liable of pay the necessary compensation in case of accidents, as per the Workmen's Compensation Act. The bidder will also be liable to abide by the fair wage clause condition attached separately.
36. If the department undertakes to supply particular materials to claim for extra payment on account of delay in the supply of materials will be entertained.
37. In the case of construction of staining to wells, excessive tilts if any occurring to the extent which is more than the percentage allowed as per rules will have to be rectified by the bidder at his own cost and if the bidder fails to attend to the same it will be got rectified by another agency and cost there of recovered from the original bidder.
38. The bidder should take a license under the current explosive rules to enable him to manufacture and possess the quantity of gun powder required by him for blasting, if necessary.
39. The bidder shall employ engineering personnel as detailed below for a period of one to two years according to the tenure of the contract the Engineering Graduates and Engineering Diploma Holders respectively.

Cost of work executed	No of personnel to be employed
For works costing from Rs. 2 lakhs up to Rs 20 lakhs	One Engineering Diploma Holder
For work costing over 20 lakhs	One Engineering Degree Holder
For Pre-Qualification work/Post qualification works	One Engineering Degree Holder and One Diploma holder

40. Tenders which are not in conformity with this tender notice are liable to rejection.
41. This tender notice with the conditions stated herein will form part of the contract documents.
42. In the case of schedule contracts when the rates quoted for a particular item in figures and words disagree, the rates quoted in words will be taken for the purpose, of the settlement of the contract. The bidder is bound to accept these rates if the contract is awarded to him. Similarly in the case of percentage rate contract when the prevail percentage rates quoted in figures and words disagree, the rates noted in words will be taken for the purpose of the settlement of the contract The bidder is bound to accept these rates if the contract is awarded to him.
43. If any correction is made by the bidder in the tender schedule the tenders are likely to be rejected. Any corrections/ suggestions/ remarks etc. to be given by the bidder has to be made only in the "Remarks" page/ section of the online bid.
44. In the case of the percentage rate contract, the overall percentage rate quoted by the bidder shall not be varied on any account whatever and it shall hold good for all items done prospective of variations in quantities.
45. The quantities provided in the schedule may vary and the bidder should be prepared to do excess up to 25% (twenty-five per cent) over the schedule quantities at the quoted rate for the work.
46. It shall be accepted as a condition of contract that the landed property or bank deposit based on which the solvency certificate was issued by the Revenue Department and produced during the

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